READING PASSAGE 1

*You should spend about 20 minutes on **Questions 1–13**, which are based on Reading Passage 1 below.*

The Whale Goes to Court

A remarkable legal drama in the U.S.A.

In 1818 a whale became the subject of a controversial court case in New York City. The case involved an old law requiring those who sold fish oil to pay a fee in order to have their barrels inspected by city officials, and certified. However, an oil merchant named Samuel Judd refused to pay the inspection fee on three barrels of oil, claiming that no inspection was necessary because it was whale oil, and whales were not fish. The state disagreed, and so a date was set for a court to decide not a point of law, but the answer to a more fundamental question: is a whale a fish?

As simple as that question may appear today, the answer was far from obvious in the early nineteenth century. Indeed, the public debate in New York sparked off by the trial was sensational. At stake was nothing less than what most regarded as the order of nature. According to the commonly accepted scheme of things, if an animal was not a beast or a bird, it was a fish, regardless of whether it breathed air or suckled its young. For as long as anyone could remember, all non-human creatures had been organised according to the categories of birds, beasts and fish. For the average person the answer seemed perfectly obvious: whales swam in the sea and therefore they were fish.

Against this traditional framework stood the new Linnaean system of classification, which sought to introduce more scientific values into the classification of living things. Barely half a century old in 1818, the Linnaean system controversially classified whales as mammals because they shared two mammalian characteristics: they were warm-blooded and breathed air.

So the trial began in December 1818. Judd's defence lawyers chose as their star witness one of New York's most prominent figures, the congressman Samuel Mitchill. Referred to as a 'living encyclopaedia' and a 'walking library', Mitchill was a renowned natural history lecturer at the college of Physicians and Surgeons who liked to dare his students to test his knowledge of the natural world. 'Show me the fin, and I will name the fish,' he boasted. Scientifically, it was an open-and-shut case, and Judd's defence lawyers believed they only had to do one simple thing to win the trial: insist that it be decided by biology alone. Mitchill seemed fully qualified for this role.

But this is where the case becomes interesting, and is the reason why the trial of the whale is not some dusty nineteenth-century obscurity. For rather than debate Mitchill on his area of expertise, lawyers for the New York City fish-oil inspectors chose a different tack. Lead

counsel William Sampson turned the trial into a contest between scientific learning and common sense, by asking plain-spoken whalers to make their case before the jury.

The crux of Sampson's case was the trial's implication with regard to humans, should Judd be found not guilty. Sampson told jury members that if they accepted Mitchill's testimony on whales, they were obliged to accept a lower place for their own kind in the natural order. As a result, Mitchill's day in court did not go smoothly, not least because he was forced to acknowledge serious disputes among his peers regarding exactly how to classify biological organisms. Sampson then took aim at Mitchill himself and what he represented: privileged aristocrats from the scientific community who had lost touch with reality. The smooth-talking Sampson then claimed Mitchill's beliefs had their origin in Europe – something he rightly judged would infuriate the citizens of always-independent New York. This revolutionary new thinking Sampson claimed, was something that honest working New Yorkers could do without. No longer was this a case about barrels of oil but the proper place of scientific knowledge in the U.S.A.

Ultimately, what won the case for Samuel Judd were not Mitchill's scientific arguments, but testimony from a different sphere altogether. In New York's markets, the merchants implicitly understood that whale oil and fish oil were not the same: whale oil could be used as a fuel for lamps because it could be burned without giving off smoke; fish oil, on the other hand, was nasty, impure stuff used primarily in tanning leather. In the end it was this testimony that led to Judd's victory.

The trial of the whale still has relevance today, when the court of public opinion remains easily swayed by sceptics. The 1818 trial was really about this question: who gets to decide on the place of the natural world in the human world – scientific experts or public opinion? Whether the issue today is the effects of human activity on the climate of this planet, or one of many other contemporary topics, the legacy of Judd's case continues to be of relevance.

Questions 1–7

Do the following statements agree with the information given in Reading Passage 1?

In boxes 1–7 on your answer sheet, write

TRUE	*if the statement agrees with the information*
FALSE	*if the statement contradicts the information*
NOT GIVEN	*if there is no information on this*

1 An inspection fee on fish oil was introduced in New York in 1818.

2 Samuel Judd argued that the inspection fee should exclude whale oil.

3 Judd had been in trouble with city officials before the inspection fee disagreement.

4 Many New Yorkers were interested in the court case at the time.

5 Traditionally, non-human creatures had been classified in one of three groups.

6 Generally speaking, ordinary people thought fish were the lowest form of life.

7 Whales were excluded from the Linnaean system in 1818.

Questions 8–13

Complete the notes below.

*Choose **ONE WORD ONLY** from the passage for each answer.*

Write your answer in boxes 8–13 on your answer sheet.

The Trial of December 1818

The Personalities

- Samuel Mitchill worked as a congressman and a **8** _____.
- The defence wanted Mitchill to present the biology of the case.
- William Sampson called **9** _____ as witnesses in order to appeal to the common sense of the jury.

The Arguments

- Sampson's case was based on the consequences for humans if Judd won.
- Mitchill admitted that scientists had disputes about classification.
- New Yorkers disliked Mitchill because his ideas came from **10** _____.

Conclusions

- In the end it was statements from local **11** _____, not Mitchill's testimony which helped Judd win.
- Whale oil made a good **12** _____ because it was clean.
- Judd's case is relevant today, e.g. in the debate about Earth's **13** _____.

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Questions 1–7

题号	答案	题干翻译	定位句	定位句翻译	详细解释
1	**FALSE**	纽约在1818年**引入了**鱼油检查费。	“The case involved **an old law** requiring those who sold fish oil to pay a fee…”	这起案件涉及的是**一项旧法律**，该法律要求出售鱼油的人支付一笔费用……	题干说这项费用是**在1818年 introduced（被引入）**的，但原文明确说这是 **an old law（一项旧法律）**，说明它在1818年之前就已经存在了，不是1818年才设立的。题干把“旧法”偷换成“1818年新引入”，与原文矛盾，所以是 **FALSE**。
2	**TRUE**	Samuel Judd 认为检查费**不应包括**鲸油。	“…Samuel Judd refused to pay the inspection fee on three barrels of oil, claiming that no inspection was necessary because it was **whale oil**, and whales were **not fish**.”	Samuel Judd 拒绝为三桶油支付检查费，他声称不需要检查，因为那是**鲸油**，而且鲸鱼**不是鱼**。	旧法针对的是 **fish oil**。Judd 的核心论点是：他的油是 **whale oil**，而鲸不是鱼，所以鲸油不应被算进 fish oil 的检查范围。题干中的“exclude whale oil”是对原文意思的准确改写，因此为 **TRUE**。
3	**NOT GIVEN**	在这次关于检查费的争议之前，Judd 以前就曾和市政官员有过麻烦。	原文只说：“…an oil merchant named Samuel Judd refused to pay…”	……一个名叫 Samuel Judd 的油商拒绝支付……	原文只介绍了**这一次案件**，没有提到 Judd **以前是否**也和市政官员发生过冲突。既没有说有，也没有说没有，因此是 **NOT GIVEN**。这类题要特别注意：不能因为“他这次和官员起争执”就脑补“以前也有过”。
4	**TRUE**	当时许多纽约人都对这场官司感兴趣。	“Indeed, the public debate in New York sparked off by the trial was **sensational**.”	的确，这场审判在纽约引发的公众讨论是**轰动性的**。	“sensational”说明这场审判引发了很大的社会关注；后文也说“At stake was nothing less than what most regarded as the order of nature.”，说明它不是一个冷门案件，而是引起广泛讨论的公共事件。所以“许多纽约人感兴趣”与原文一致，故为 **TRUE**。
5	**TRUE**	传统上，非人类生物一直被分在三类中的一类。	“For as long as anyone could remember, all non-human creatures had been organised according to the categories of **birds, beasts and fish**.”	在任何人所能记起的时期里，所有非人类生物都被归入**鸟类、兽类和鱼类**这几类。	题干中的“classified in one of three groups”对应原文的三大类：**birds / beasts / fish**。这是非常直接的同义改写：classified = organised according to categories；three groups = birds, beasts and fish。因此答案是 **TRUE**。
6	**NOT GIVEN**	一般来说，普通人认为鱼是最低等的生命形式。	“For the average person the answer seemed perfectly obvious: whales swam in the sea and therefore they were fish.”	对普通人来说，答案似乎非常明显：鲸在海里游，因此它们就是鱼。	原文只说普通人认为“鲸生活在海里，所以是鱼”，并没有说他们认为“鱼是最低等的生命形式”。题干多加了一个价值判断：**the lowest form of life**。原文没有比较 birds / beasts / fish 三者高低，因此是 **NOT GIVEN**。
7	**FALSE**	在1818年的林奈分类系统中，鲸鱼被排除在外。	“…the Linnaean system controversially **classified whales as mammals**…”	……林奈分类系统有争议地**将鲸归为哺乳动物**……	题干说 whales were **excluded from** the Linnaean system，意思是“鲸鱼没有被纳入该系统”。但原文明确说恰恰相反：该系统**对鲸进行了分类**，并把它们归为 **mammals（哺乳动物）**。所以题干与原文相反，为 **FALSE**。

Questions 8–13

题号	答案	题干翻译	定位句	定位句翻译	详细解释
8	**lecturer**	Samuel Mitchill 的身份是国会议员兼一名 _____。	“…the congressman Samuel Mitchill… Mitchill was a renowned natural history **lecturer**…”	……国会议员 Samuel Mitchill……Mitchill 是一位著名的自然史**讲师**……	题目说“worked as a congressman and a ___”。原文先给出身份 **congressman**，后给出另一个职业身份 **lecturer**。注意只能填 **ONE WORD ONLY**，所以答案填 **lecturer**。
9	**whalers**	William Sampson 叫来 _____ 作为证人，以迎合陪审团的常识判断。	“…by asking plain-spoken **whalers** to make their case before the jury.”	……他让说话直白的**捕鲸人**在陪审团面前陈述他们的观点。	题干中的“called ___ as witnesses”对应原文 asking … to make their case before the jury。证人是谁？是 **whalers**。这里常识与科学形成对立，Sampson 故意请普通、直白、贴近现实经验的人来影响陪审团。
10	**Europe**	纽约人不喜欢 Mitchill，因为他的观点来自 _____。	“The smooth-talking Sampson then claimed Mitchill’s beliefs had their origin in **Europe**…”	口才很好的 Sampson 随后声称，Mitchill 的信念起源于**欧洲**……	题干是 ideas came from ___，与原文 had their origin in ___ 完全对应。答案直接取原词 **Europe**。
11	**merchants**	最终帮助 Judd 获胜的不是 Mitchill 的证词，而是当地 _____ 的说法。	“In New York’s markets, the **merchants** implicitly understood that whale oil and fish oil were not the same…”	在纽约的市场里，**商人们**心照不宣地明白，鲸油和鱼油并不一样……	题干中的“statements from local ___”对应原文中真正起作用的是来自市场经验的证词，而这一经验主体就是 **merchants**。后面句子“In the end it was this testimony that led to Judd’s victory.”进一步确认答案。
12	**fuel**	鲸油是一种很好的 _____，因为它很干净。	“…whale oil could be used as a **fuel** for lamps because it could be burned without giving off smoke…”	……鲸油可以作为灯的**燃料**，因为燃烧时不会冒烟……	题干里的“because it was clean”对应原文“without giving off smoke（不会冒烟）”。这说明鲸油适合作为 **fuel**。注意不能填 lamps，因为题目结构是“made a good ___”，最合适的是 **fuel**。
13	**climate**	Judd 的案件在今天仍然相关，例如关于地球 _____ 的争论。	“Whether the issue today is the effects of human activity on the **climate** of this planet…”	无论今天的问题是人类活动对这个星球**气候**的影响……	题干“Earth’s ___”对应原文“the climate of this planet”。因此答案是 **climate**。这里也是典型同义转换：Earth = this planet。